

|   |                                            |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
|---|--------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|   |                                            | <p>\$25,000. However, it has been the Court's experience that this occurs where the actual treatment is significant or there is a significant injury. Here, there are virtually no economic damages and the only objective injury has healed without consequence.</p> <p>In consideration of the evidence submitted, it must be said that "the verdict will 'necessarily' fall short of the superior court jurisdictional requirement of a claim exceeding \$25,000." (<i>Walker v. Superior Court</i> (1991) 53 Cal.3d 257, 269-270) Accordingly, the motion is GRANTED.</p> <p>The Court therefore ORDERS that this case be reassigned to limited civil.</p> <p>Counsel for Smart &amp; Final, LLC. is ordered to give notice of this ruling.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 7 | Razo v. Andersson                          | Cont. to 12/11.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 8 | Daleh v. NPI<br>Dept Fund II,<br>LP et al. | <p>Before the Court is an Order to Show Case re: Issuance of a Preliminary Injunction to prevent Defendants from foreclosing upon, selling, transferring, or executing any Trustee Deed's Upon sale for the subject real property located at 25121 Arctic Ocean Drive, Lake Forest CA 92630.</p> <p>The court finds a Preliminary Injunction is warranted in this instance. The burden is on the moving party to show all elements necessary to support issuance of a preliminary injunction. (<i>O'Connell v. Superior Court</i> (2006) 141 Cal.App. 4th 1452, 1481.) The moving party has the burden to show that it is reasonably probable it will prevail on the merits. (<i>San Francisco Newspaper Printing Co. v. Superior Court</i> (1985) 170 Cal.App.3d 438, 442; Weil &amp; Brown, ¶ 9:632.1.) Additionally, "[i]n deciding whether to issue a preliminary injunction, a trial court weighs two interrelated factors: [1] the likelihood the moving party ultimately will prevail on the merits, and [2] the relative interim harm to the parties from the issuance or nonissuance of the injunction." (<i>Whyte v. Schlage Lock Co.</i> (2002) 101 Cal.App.4th 1443, 1449-1450.)</p> <p>Here, the likelihood of prevailing is based not only on Plaintiff's arguments but also on the entry of default as to Defendant NPI. As to the breach of contract claim, it is clear that the full amount of the loan was never disbursed. While Defendant presents the "Improvement Loan Agreement" attached to the Declaration of Scott Lowe as Exhibit 2, that document states that the loan would "bear interest on so much of the principal sum as shall be advanced pursuant to the terms of the Promissory Note of even date" and "The Loan shall bear interest on each Advance from the date of the Advance in accordance with the terms of the Note." As it is clear that the full amount of \$3,150,000 was never advanced, Plaintiff's assertion that it was erroneously charged interest on the full loan amount is likely to succeed. Particularly as Defendant is currently in default in this case, Plaintiff has shown a likelihood of success on the merits.</p> |

|   |                   |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
|---|-------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|   |                   | <p>As to interim harm, it is clear that Plaintiff stands to lose the property and any sums of money and hours already expended into the property. Defendant has not presented any risk of interim harm if the injunction is issued. As such the Preliminary Injunction is GRANTED.</p> <p>As to bond, Defendant's request for a bond of \$2,000,000 is unsupported. Defendant has not articulated any possible damages at all beyond the continually accruing interest. As such, the bond is set at \$200,000, representing approximately six months of interest.</p> <p>Moving party to give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 9 | Baglien v. Garcia | <p>Defendants County of Orange ("County" individually), Nicholas Doty ("Doty" individually), Steve Hertz ("Hertz" individually), and Adewale Olukoju's ("Olukoju" individually; "Defendants" all together) Motion for Summary Judgment, or Alternatively, Summary Adjudication ("Motion") is <b>GRANTED in its entirety</b>.</p> <p>"(p) For purposes of motions for summary judgment and summary adjudication:</p> <p>. . .</p> <p>(2) A defendant . . . has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto." (Civ. Proc. Code § 437c(p)(2).)</p> <p>"(f)(1) A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (Civ. Proc. Code § 437c(f)(1).)</p> <p>"The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. In determining if the papers show that there is no triable issue as to any material fact, the court shall consider all of the evidence set forth in the papers, except the evidence to which objections</p> |